

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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JOSHUA RICHARDSON,

Plaintiff,

Index No.:

- against -

SUMMONS

CITY OF NEW YORK,
TRISTAN TRUNK,
FRANK BEERS,
THOMAS OWENS,
MOHAMMAD HYATT,
MARIO BUENO,
and JOHN LEWIS,

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiff an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

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The basis of the venue designated are the residences of the plaintiff and defendant, and because the events complained of herein occurred primarily in Kings County.

Dated: New York, New York
November 12, 2019

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
305 Broadway, Suite 1400
New York, New York 10007
(212) 566-5060

Defendants' Addresses:

The City of New York
100 Church Street
New York, New York 10007

PO Tristan Trunk, Tax 958131
One Police Plaza
New York, NY 10038

PO Frank Beers, Tax 945498
PO Thomas Owens, Tax 961051
PO Mohammed Hyatt, Tax 955994
PO Mario Bueno, Tax 960290
71 Precinct
421 Empire Blvd
Brooklyn, NY 11225

Sgt. John Lewis, Tax 956045
110 Precinct
94-41 43rd Avenue
Queens, NY 11373

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

-----X

JOSHUA RICHARDSON,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK,
TRISTAN TRUNK,
FRANK BEERS,
THOMAS OWENS,
MOHAMMAD HYATT,
MARIO BUENO,
and JOHN LEWIS,

Defendants.

-----X

1. At all relevant times hereinafter mentioned, plaintiff JOSHUA RICHARDSON was an adult resident of Kings County and the State of New York.
2. At all relevant times hereinafter mentioned, defendant CITY OF NEW YORK (the "City") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department ("NYPD") and its employees and agents.
3. At all relevant times hereinafter mentioned, defendant TRISTAN TRUNK Shield 16858, was employed by the City as a member of the NYPD. TRUNK is sued herein in his individual capacity.
4. At all relevant times hereinafter mentioned, defendant FRANK BEERS, Shield 17641, was employed by the City as a member of the NYPD. BEERS is sued herein in his individual capacity.

5. At all relevant times hereinafter mentioned, defendant THOMAS OWENS, Shield 8023, was employed by the City as a member of the NYPD. OWENS is sued herein in his individual capacity.

6. At all relevant times hereinafter mentioned, defendant MOHAMMED HYATT, Shield 12391, was employed by the City as a member of the NYPD. HYATT is sued herein in his individual capacity.

7. At all relevant times hereinafter mentioned, defendant MARIO BUENO, Shield 11861, was employed by the City as a member of the NYPD. BUENO is sued herein in his individual capacity.

8. At all relevant times hereinafter mentioned, defendant JOHN LEWIS, Shield 26530, was employed by the City as a member of the NYPD. LEWIS is sued herein in his individual capacity.

9. Defendants TRUNK, BEERS, OWENS, HYATT, BUENO, and LEWIS (the “individual defendants”) are, and were, at all times relevant herein duly sworn, appointed and acting law enforcement officers, servants, employees and agents of the NYPD.

10. The individual defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as members of the NYPD.

11. A Notice of Claim was timely served by the plaintiff upon the defendant City of New York.

12. The City of New York subsequently conducted an examination of the plaintiff pursuant to General Municipal Law §50-H.

13. At least thirty days have passed since service of plaintiff's Notice of Claim, and adjustment and payment thereof has been neglected or refused by the City of New York.

14. Plaintiff has complied with all obligations, requirements, and conditions precedent to commencing an action against New York City under New York law.

15. Beginning on July 1, and continuing into July, 2017, a block party was held on Albany Avenue between, or in the vicinity of, Kingston and Maple Avenues in Kings County.

16. On July 2, 2017, at about 1:35 am, multiple gunshots were fired at a group of people in the area of 590 Maple Avenue.

17. People attending the block party began to run when the shots were fired.

18. Plaintiff was a guest at the party.

19. After the gunshots were fired, plaintiff was tackled to the ground, struck, and tased by at least some of the individual defendants in the vicinity of 590 Maple Avenue.

20. At no time that evening was plaintiff in possession of a handgun.

21. At no time that evening did plaintiff fire a handgun, nor was there any reasonable basis to believe that he had fired a handgun.

22. Notwithstanding the absence of evidence that plaintiff had possessed or discharged a handgun that evening, the defendants arrested plaintiff.

23. At no time was there probable cause for the plaintiff's arrest nor was there any reasonable basis for the individual defendants to believe that probable cause for plaintiff's arrest existed.

24. Despite the continuing absence of sufficient legal cause to justify the initial detention of plaintiff, much less his arrest, plaintiff was nonetheless arrested, handcuffed, and transported to a local NYPD station house, where he was jailed against his will for a period of time.

25. Plaintiff was eventually taken to Central Booking, where he was further jailed for a period of time.

26. While plaintiff was in defendants' custody, the individual defendants completed arrest paperwork in which they falsely claimed that they had witnessed plaintiff commit various crimes, including the criminal possession and discharge of a handgun.

27. These allegation, both generally, and as later specifically communicated to prosecutors, were materially false and the individual defendants were aware at all times that the allegations were false.

28. The individual defendants either jointly participated in the creation of this arrest paperwork or were otherwise aware that one or more of the other individual defendants would create, was creating, had created, or caused the creation of this paperwork.

29. The decision to arrest the plaintiff, the fabrication of allegations of criminal conduct and the surrounding circumstances, and the communication of the manufactured and otherwise materially inaccurate and misleading factual claims, were made jointly by the individual defendants, or with each other's knowledge and acquiescence, to justify plaintiff's unlawful arrest and persuade the Kings County District Attorney's office ("KCDA") to commence plaintiff's criminal prosecution.

30. The arrest paperwork, containing the fabricated and falsified claims and misleading and incomplete statements of fact, was forwarded to the KCDA while plaintiff was in defendants' custody for the express purpose of causing the initiation of plaintiff's criminal prosecution.

31. To the extent that either individual defendant did not personally, affirmatively participate in said conduct, he was aware that such conduct was occurring and would continue to occur, and deliberately and consciously failed to intervene in such conduct, despite ample opportunity to do so.

32. The individual defendants are therefore equally liable for the arrest of the plaintiff and the commencement of his prosecution, both by virtue of their own actions, by their deliberate failure to intervene in the other's unconstitutional conduct, and because they were, at all relevant times herein, acting jointly and in concert.

33. Plaintiff was subsequently charged with Attempted Murder in the Second Degree and Criminal Possession of a Weapon in the Second Degree and other charges.

34. After the arrest, bail was set by the criminal court, Plaintiff was unable to post bail and therefore jailed and subsequently indicted by a Kings County Grand Jury under Indictment No.: 5231-2017.

35. Plaintiff remained incarcerated from the time of his arrest through and beyond the final verdict following his trial in February 2019 in Supreme Court, Kings County, Criminal Term, Part 9.

36. At no time during the course of plaintiff's criminal prosecution did any of the defendants admit to having made materially false statements and claims concerning plaintiff, and they continued to adhere to the falsified and untrue version of events through the conclusion of plaintiff's trial.

37. At no time during the course of plaintiff's criminal prosecution did any of the defendants admit or advise the KCDA that their fellow officers' statements were materially false or misleading in any way.

38. The individual defendants continued to maintain and repeat a materially falsified version of events to prosecutors, and thereby caused his prosecution to continue, during which time plaintiff remained imprisoned.

39. On February 28, 2019, a jury acquitted plaintiff of all charges.

40. Prior to his release plaintiff had been incarcerated due to his arrest for approximately twenty months.

FIRST CLAIM

(42 USC 1983 Against All Defendants)

41. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

42. By their conduct and actions in falsely imprisoning, maliciously prosecuting and assaulting plaintiff, defendants, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

43. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages from the individual defendants in a sum to be determined at trial.

SECOND CLAIM

(42 USC 1983 Against City of New York)

44. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

45. At all times material to this complaint, defendant CITY had de facto policies, practices customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

46. At all times material to this complaint, defendant CITY failed to properly train, screen, supervise, or discipline employees and police officers, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

47. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court.

THIRD CLAIM

(42 USC 1983 Against Individual Defendants
for False Arrest and Imprisonment)

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. Defendants arrested plaintiff, or otherwise brought about or participated in his arrest, without probable cause for the arrest, or any reasonable basis to believe that probable cause existed or that the arrest was otherwise lawful.

50. Defendants caused plaintiff to be imprisoned without a lawful order or any other lawful basis, or otherwise brought about plaintiff's imprisonment by deliberately causing plaintiff to be wrongfully prosecuted.

51. Plaintiff was conscious of his confinement and did not consent to being confined.

52. By reason thereof the individual defendants violated plaintiff's right to be free from false arrest and false imprisonment under the Fourth and Fourteenth Amendments of the United States Constitution, and thereby violated 42 USC 1983.

53. The individual defendants' conduct was willful, deliberate, and malicious, such that plaintiff is entitled to recover punitive damages from each individual defendant.

54. As a result of the foregoing, Plaintiff was deprived of his liberty, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages from the individual defendants in a sum to be determined at trial.

55. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court.

FOURTH CLAIM

(42 USC 1983 Against Individual Defendants
for Malicious Prosecution and Denial of a Fair Trial)

56. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

57. The individual defendants fabricated evidence and otherwise knowingly communicated a falsified and materially misleading series of factual claims to the KCDA.

58. The individual defendants lied to and misled the KCDA in order to bring about the commencement of plaintiff's criminal prosecution by the KCDA.

59. Plaintiff was, in fact, criminally prosecuted by the KCDA as a direct result of the individual defendants' forwarding of the materially false and/or misleading information to the KCDA.

60. The individual defendants communicated these fabricated and materially misleading facts because they knew and understood that there was otherwise no probable cause for plaintiff's prosecution.

61. Plaintiff suffered a deprivation of his liberty as a result of these actions by the individual defendants.

62. The transmission of these false and misleading facts by the individual defendants was malicious and otherwise undertaken for an impermissible purpose.

63. The criminal prosecution was eventually terminated in plaintiff's favor.

64. By virtue of their conduct, the individual defendants violated plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution, and thereby violated 42 USC 1983.

65. The individual defendants are therefore liable to plaintiff for (i) malicious prosecution, and (ii) the deprivation of plaintiff's right to a fair trial.

66. The individual defendants' conduct was willful, deliberate, and malicious, such that plaintiff is entitled to recover punitive damages from each individual defendant.

67. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court.

FIFTH CLAIM

(42 USC 1983 Against Individual Defendants for Excessive Force)

68. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

69. The individual defendants, jointly and severally, deliberately used physical force against the plaintiff prior to and during the course of his arrest and detention that was objectively unreasonable under the objective facts known to the individual defendants at the time.

70. By so doing, the individual defendants violated plaintiff's right under the Fourth Amendment of the United States Constitution not to be subjected to excessive or unnecessary force, and thereby violated 42 USC 1983.

71. The individual defendants' conduct was willful, deliberate, and malicious, such that plaintiff is entitled to recover punitive damages from each individual defendant.

72. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court.

SIXTH CLAIM

(42 USC 1983 Against Individual Defendants for Failing to Intervene)

73. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

74. To the extent that any of the individual defendants did not directly participate in the use of excessive force, or the false arrest and imprisonment of plaintiff, or his malicious prosecution, or the denial of plaintiff's right to a fair trial, each such defendant was aware of the unconstitutional conduct and actions of his/her fellow officers and had ample opportunity to limit or prevent such conduct from continuing, yet chose not to intervene in order to limit or protect plaintiff from further injury.

75. By reason of this deliberate decision not to intervene in their fellow officers' unconstitutional conduct, the individual defendants violated plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution and caused plaintiff to be subjected to excessive or unnecessary force, falsely arrested and imprisoned, maliciously prosecuted, and denied his right to a fair trial, just as though each such defendant had directly participated in said misconduct, and thereby violated 42 USC 1983.

76. The individual defendants' conduct, or failure to act, was willful, deliberate, and malicious, such that plaintiff is entitled to recover punitive damages from each individual defendant.

77. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court.

SEVENTH CLAIM

(State Law Claim Against All Defendants for
False Imprisonment and Malicious Prosecution)

78. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

79. Plaintiff was wrongly imprisoned from the date of his arrest through the date of his acquittal on February 28, 2019.

80. Plaintiff was conscious of his confinement, and did not consent to this confinement.

81. Plaintiff's confinement was brought about by defendants' false and misleading statements to the KCDA.

82. The municipal defendant, the CITY OF NEW YORK, is vicariously liable to plaintiff for the acts of the individual defendants who were at all relevant times herein acting within the scope of their employment as subordinate officers and agents of the municipal defendant.

83. The individual defendants are liable to plaintiff under state law, for (i) false imprisonment, (ii) malicious prosecution, and (iii) denial of due process and the right to a fair trial, and the municipal defendant is vicariously liable to plaintiff for the aforementioned bad acts of its agents and under state law, including (i) false arrest and imprisonment, (ii) malicious prosecution, and (iii) denial of due process and the right to a fair trial.

84. As a result of the foregoing, plaintiff was deprived of his liberty, caused to endure physical pain and suffering, emotional distress, humiliation, lost earnings, financial injuries, was otherwise damaged and injured in an amount in excess of the jurisdictional minimum of this Court.

WHEREFORE, Plaintiff demands the following relief jointly and severally against the defendants as follows:

1. Compensatory damages against each and all defendants;
2. Punitive damages against each of the individual defendants;
3. The convening and empaneling of a jury to consider the merits of the claims herein;
4. Pre- and post-judgment costs, interest, and legal fees; Interest, costs and disbursements;
5. Legal fees and costs pursuant 42 USC 1988; and,
6. Such other and further relief as this Court may deem appropriate and equitable.

Dated: November 12, 2019
New York, New York

LUMER LAW GROUP
Attorneys for Plaintiff

/s/Michael Lumer

By: _____

Michael Lumer, Esq.
305 Broadway, Suite 1400
New York, New York 10007
(212) 566-5060

LAW OFFICE OF MORRIS SHAMUIL
Attorneys for Plaintiff

/s/Morris Shamuil

By: _____

Morris Shamuil, Esq.
132 Nassau Street, Suite 1401
New York, New York 10038
(212) 608-2757

VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF NEW YORK)

MICHAEL LUMER affirms, pursuant to the CPLR, under penalty of perjury, that he is the attorney for the plaintiff in the within action; that he has read the foregoing

COMPLAINT

and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters he believes them to be true.

Affiant states that the reason he makes this affirmation is that the plaintiff currently resides in a county other than the one in which affiant maintains his offices; and affiant further states that the sources of his information and belief are from conversations had with petitioner and/or from the transcripts, memoranda, documents, reports, and other related records in the file of this action, which is maintained by my office.



MICHAEL LUMER

Dated: New York, New York
November 12, 2019